

Court No. - 40

Case :- WRIT - C No. - 3160 of 2024

Petitioner :- Narendra Nath Yadav And Another

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Deena Nath,Deepak Kumar,Sunita
Dhusia

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Ashwani Kumar Mishra,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

1. A provisional notice under Section 126 of the U.P. Electricity Supply Code, 2005 has been issued to the petitioners on 23.1.2021, as per which petitioners have indulged in theft of electricity. It is submitted that the petitioners have submitted reply to the notice but without considering their objections the authorities are proposing to make recoveries from the petitioners.

2. Learned counsel for the respondents does not dispute the fact that petitioners' objection to the provisional notice has not been considered and that no final orders in that regard has been passed.

3. A perusal of the scheme contained in Section 126 of the U.P. Electricity Supply Code, 2005 would go to show that a person accused of theft of electricity, once is served with a provisional notice, he shall be at liberty to submit a reply which would be considered before finalizing the liability of such person. It transpires that no such decision upon consideration of petitioners' objection has yet been taken.

4. In that view of the matter, we dispose of this petition directing respondent no.4 to accord consideration to petitioners' objection submitted against the provisional notice by passing a reasoned order, in accordance with law, within a period of two months, from the date of presentation of a certified copy of this order. It is made clear that till such an order is passed, in accordance with law, no coercive action shall be taken against the petitioners.

Order Date :- 16.2.2024

RA